

Chapter 90 Open Space

90.5 Regulations Applying to the Open Space Zone Category

90.5.1 General

90.5.1.10 Interpretation

(1) Application of General Regulations Section

The regulations in Section 90.5 apply to all lands, uses, **buildings** and **structures** in the Open Space Zone category.

(2) Interpretation of the Open Space Zone Symbol

The zone symbol on the Zoning By-law Map for zones in the Open Space Zone category consists of the letters O, ON, OR, OG, OM or OC, indicating the primary land use permitted in the respective zone.

90.5.20 Permitted Uses

90.5.20.1 General

(1) Lawfully Existing Public School, Private School

A **lawfully existing public school** or **private school** on a **lot** in the Open Space Zone category is permitted on that **lot**, and:

(A) any expansion or addition to the **lawfully existing public school** or **private school building** must comply with Section 150.48 and the requirements for the zone in which the **lot** is located; and

(B) the **lawfully existing public school** or **private school** may be replaced with a new school **building** that complies with Section 150.48 and the requirements for the zone in which the **lot** is located.

90.5.40 Principal Building Requirements

90.5.40.1 General

(1) Building Requirements

Additional **building** requirements are in each zone in the Open Space Zone category.

90.5.40.10 Height

(1) Determining the Height of Buildings or Structures

In the Open Space Zone category, the height of a **building** or **structure** is the distance between **average grade** and the elevation of the highest point of that **building** or **structure**.

(2) Height of Specific Structures on a Building

In the Open Space Zone category, the following **structures** on the roof of a **building** may exceed the permitted maximum height for that **building** by:

(A) 1.5 metres for:

- (i) parapets for a **green roof**; and
- (ii) weather vanes; or

(B) 5.0 metres for:

- (i) antennae;

- (ii) flagpoles; and
- (iii) satellite dishes.

(3) Height of Elements for Functional Operation of a Building

In the Open Space Zone category, the following equipment and **structures** on the roof of a **building** may exceed the permitted maximum height for that **building** by 5.0 metres, subject to regulation 90.5.40.10(4):

- (A) equipment used for the functional operation of the **building**, such as electrical, utility, mechanical and ventilation equipment;
- (B) **structures** or parts of the **building** used for the functional operation of the **building**, such as enclosed stairwells, roof access, maintenance equipment storage, elevator shafts, chimneys, vents, and water supply facilities; and
- (C) **structures** that enclose, screen or cover the elements listed in (A) and (B) above.

(4) Height - Horizontal Limits on Elements for Functional Operation of a Building

In the Open Space Zone category, equipment, **structures** or parts of a **building** that exceed the permitted maximum height for a **building** in regulation 90.5.40.10(3), must comply with the following:

- (A) their total area may cover no more than 30% of the area of the roof, measured horizontally; and
- (B) if located within 6.0 metres of a **lot line** abutting a **street**, their total horizontal dimension, measured parallel to the **street**, may not exceed 20% of the width of the **building's main walls** facing that **street**.

(5) Height of Rooftop Amenity Space Safety and Wind Protection

In the Open Space Zone category, unenclosed **structures** providing safety or wind protection to rooftop **amenity space** may exceed the permitted maximum height for that **building** by 3.0 metres, if the **structures** are no closer than 2.0 metres from the interior face of any **main wall**.

90.5.40.11 Height Exemptions

(1) Permitted Height for Lawfully Existing Buildings

In the Open Space Zone category, if the **lawful** height of a **lawfully existing building** or **structure** is greater than the permitted maximum height for a **building** or **structure**, that **lawful** height is the permitted maximum height for that **lawfully existing building** or **structure**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 90.5.40.11(1) must comply with the permitted maximum height for a **building** or be authorized by a Section 45 Planning Act minor variance.

(3) Alterations to the Roof of Lawfully Existing Buildings

Any alteration to the roof of a **lawfully existing building** referred to in regulation 90.5.40.11(1) may be constructed to the permitted maximum height in regulation 90.5.40.11(1).

90.5.40.40 Floor Area

(1) Floor Space Index Calculation

In the Open Space Zone category, the floor space index is the result of the **gross floor area** of a **building** divided by the area of the **lot**.

90.5.40.41 Floor Area Exemptions

(1) Permitted Gross Floor Area for Lawfully Existing Buildings

In the Open Space Zone category, if the **lawful gross floor area** of **lawfully existing buildings** on a **lot** is greater than the permitted maximum **gross floor area**, the **lawful gross floor area** of those **lawfully existing buildings** is the permitted maximum **gross floor area** for those **lawfully existing buildings** on that **lot**.

(2) Permitted Floor Space Index for Lawfully Existing Buildings

In the Open Space Zone category, if the **lawful gross floor area** of **lawfully existing buildings** on a **lot** results in a floor space index greater than the permitted maximum floor space index, the **lawful** floor space index of those **lawfully existing buildings** is the permitted maximum floor space index for those **lawfully existing buildings** on that **lot**.

90.5.40.60 Permitted Encroachments

(1) Canopies and Awnings

In the Open Space Zone category, a canopy, awning or similar **structure**, with or without structural support, may encroach into a required minimum **building setback** that abuts a **street**, if no part of the canopy, awning or similar **structure** is located more than 5.0 metres above the elevation of the ground directly below it.

90.5.40.70 Setbacks

(1) Building or Structure to be Set Back from a Lane

A **building** or **structure** in the Open Space Zone category may be no closer than 2.5 metres from the original centreline of a **lane**.

90.5.40.71 Setbacks Exemptions

(1) Permitted Setbacks for Lawfully Existing Buildings

In the Open Space Zone category, if the **lawful building setback** of a **lawfully existing building** or **structure** is less than the required minimum **building setback** from:

- (A) a **front lot line**, that **lawful building setback** is the required minimum **front yard setback** for that **lawfully existing building** or **structure**;
- (B) a **rear lot line**, that **lawful building setback** is the required minimum **rear yard setback** for that **lawfully existing building** or **structure**; and
- (C) a **side lot line**, that **lawful building setback** is the required minimum **side yard setback** for that **lawfully existing building** or **structure**.

(2) Additions to Lawfully Existing Buildings

Any addition or extension to a **lawfully existing building** or **structure** referred to in regulation 90.5.40.71(1) must comply with the required minimum **building setbacks** or be authorized by a Section 45 Planning Act minor variance.

(3) Permitted Setbacks for Lawfully Existing Building from a Lane

In the Open Space Zone category, if the **lawful** distance of a **lawfully existing building** or **structure** from the original centreline of a **lane** is less than the required minimum distance from the original centreline of the **lane**, that **lawful** distance is the minimum distance from the original centreline of the **lane** for that **lawfully existing building** or **structure**.

(4) Additions Above Lawfully Existing Buildings in Relation to a Lane

The required minimum distance from the original centreline of a **lane** for any addition or extension above a **lawfully existing building** or **structure** referred to in regulation 90.5.40.71(3) is the required minimum distance from the original centreline of the **lane** permitted by regulation 90.5.40.71(3).

90.5.75 Energy Regulations

90.5.75.1 General

(1) Renewable Energy or Cogeneration Energy Device - Location Restriction

In the Open Space Zone category, a device producing **renewable energy** or **cogeneration energy** may be no closer to a **lot line** than the greater of:

- (A) 10 metres;
- (B) the minimum **building setback** requirements; or
- (C) a distance equal to the height of the device, measured between the **average grade** at its base to the elevation of the highest part of the device.

(2) Renewable Energy Device - Height Requirements

In the Open Space Zone category, a photovoltaic **solar energy** device or a thermal **solar energy** device that is:

- (A) on a **building**:
 - (i) must comply with the required minimum **building setbacks** for a **building** on the **lot**; and
 - (ii) no part of the device may be higher than 3.0 metres above the permitted maximum height for the **building**; and
- (B) ground mounted, no part of the device may be more than 5.0 metres above the **average grade** at the base of the device.

(3) Wind Energy Device - Setbacks

In the Open Space Zone category, no part of a **wind energy** device may be closer to a **lot line** than the greater of:

- (A) the required minimum **building setbacks** for a **building** on the **lot**; or
- (B) a distance equal to two times the height of the device, measured between the **average grade** at its base to the elevation of the highest part of the device.

(4) Wind Energy Device - Height

In the Open Space Zone category, no part of a **wind energy** device may be more than 15.0 metres above the **average grade** at the base of the device.

(5) Geo-energy Requirements

In the Open Space Zone category, any above-ground part of a **geo-energy** device:

- (A) must be set back at least 10.0 metres from any **lot line**; and
- (B) must comply with the requirements for a **building** or **structure**, other than a required minimum **building setback** less than the requirement in (A) above.

(6) Cogeneration Device

In the Open Space Zone category, a **cogeneration energy** device must be inside a permitted **building**.

90.5.80 Parking

90.5.80.1 General

(1) Use of Required Parking Space

A **parking space** required by this By-law for a use in the Open Space Zone category must be available for the use for which it is required.

90.5.80.10 Location

(2) Location of Required Parking Spaces

A **parking space** must be on the same **lot** as the use for which the **parking space** is required.

90.10 Open Space Zone (O)

90.10.1 General

90.10.1.10 Interpretation

(1) Application of this Section

The regulations in Section 90.10 apply to all lands, uses, **buildings** and **structures** in the O zone.

90.10.20 Permitted Uses

90.10.20.10 Permitted Use

(1) Use - O Zone

The following uses are permitted in the O zone:

Park

Public Utility

Transportation Use .

90.10.20.20 Permitted Use - with Conditions

(1) Use with Conditions - O Zone

The following uses are permitted in the O zone if they comply with the specific conditions associated with the reference number(s) for each use in Clause 90.10.20.100:

Club (1)

Cogeneration Energy (2)

Education Use (1)

Recreation Use (1)

Renewable Energy (2)

90.10.20.100 Conditions

(1) Club, Education Use or Recreation Use

In the O zone, a **club**, an **education use** or a **recreation use** may not be in a **building**.

(2) Cogeneration Energy Production or Renewable Energy Production

In the O zone, **cogeneration energy** production or **renewable energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

90.10.40 Principal Building Requirements

90.10.40.10 Height

(1) Maximum Height

The permitted maximum height of a **building** or **structure** in the O zone is 4.0 metres.

90.10.40.11 Height Exemptions

(1) Height Exemptions

Regulation 90.10.40.10(1) does not apply to a **transportation use** along Eglinton Avenue West and Eglinton Avenue East, provided that the maximum **building** height is no greater than 10.5 metres. [103-2016] [By-law: 1031-2014]

90.10.40.40 Floor Area

(1) Maximum Floor Area

In the O zone, the permitted maximum **gross floor area** of a **building** is 50.0 square metres.

90.10.40.41 Floor Area Exemptions

(1) Floor Area Exemptions

Regulation 90.10.40.40(1) does not apply to a **transportation use** along Eglinton Avenue West and Eglinton Avenue East, provided that the maximum floor area is no greater than 2 times the area of the lot. [103-2016] [By-law: 1031-2014]

90.10.40.70 Setbacks

(1) Building Setbacks

For a **building** or **structure** in the O zone, the required minimum **building setback** from a **front lot line**, a **rear lot line** and a **side lot line** is:

- (A) 1.5 metres, if its height is 2.0 metres or less; and
- (B) 3.0 metres, if its height is greater than 2.0 metres.

90.10.40.71 Setbacks Exemptions

(1) Setback Exemptions

Regulation 90.10.40.70(1) does not apply to a **transportation use** along Eglinton Avenue West and Eglinton Avenue East, provided that the setbacks are between 0 and 15 metres. [103-2016] [By-law: 1031-2014]

90.20 Open Space - Natural Zone (ON)

90.20.1 General

90.20.1.10 Interpretation

(1) Application of this Section

The regulations in Section 90.20 apply to all lands, uses **buildings** and **structures** in the ON zone.

90.20.20 Permitted Uses

90.20.20.10 Permitted Use

(1) Use - ON Zone

The following uses are permitted in the ON zone:

Ambulance Depot

Agricultural Use

Fire Hall

Park

Police Station

Public Utility

Transportation Use .

90.20.20.20 Permitted Use - with Conditions

(1) Use with Conditions - ON Zone

The following uses are permitted in the ON zone if they comply with the specific conditions associated with the reference number(s) for each use in Clause 90.20.20.100:

Club (1)

Cogeneration Energy (2)

Education Use (1)

Entertainment Place of Assembly (1)

Place of Assembly (1)

Recreation Use (1)

Renewable Energy (2)

Retail Store (3)

Stable (4)

90.20.20.100 Conditions

(1) Club, Education Use, Entertainment Place of Assembly, Place of Assembly, or Recreation Use

In the ON zone, a **club**, an **education use**, an **entertainment place of assembly**, a **place of assembly**, or a **recreation use**:

(A) must be combined with a **park** or an **agricultural use**; and

(B) may not be in a wholly enclosed **building**.

(2) Cogeneration Energy Production or Renewable Energy Production

In the ON zone, **cogeneration energy** production or **renewable energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(3) Retail Store

In the ON zone, a **retail store**:

- (A) must be associated with an **agricultural use** on the same **lot**; and
- (B) may not be in a wholly enclosed **building**.

(4) Stable

In the ON zone, a **stable** must be in association with a **park** or an **agricultural use**.

90.20.40 Principal Building Requirements

90.20.40.1 General

(1) Application of this Article

The regulations in Article 90.20.40 apply to all **buildings** or **structures** in the ON zone, except for conservation works, **public utilities** and **transportation uses**.

90.20.40.10 Height

(1) Maximum Height

The permitted maximum height for a **building** or **structure** on a **lot** in the ON zone is:

- (A) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or
- (B) if the **lot** is in an area with no numerical value following the letters "HT" on the Height Overlay Map, 15.0 metres.

90.20.40.11 Height Exemptions

(1) Height Exemptions

Regulation 90.20.40.10(1) does not apply to a **transportation use** along Eglinton Avenue West and Eglinton Avenue East, provided that the maximum **building** height is no greater than 10.5 metres. [103-2016] [By-law: 1031-2014]

90.20.40.40 Floor Area

(1) Maximum Gross Floor Area

The permitted maximum **gross floor area** for a **building** in the ON zone is 500 square metres.

90.20.40.41 Floor Area Exemptions

(1) Floor Area Exemptions

Regulation 90.20.40.40(1) does not apply to a **transportation use** along Eglinton Avenue West and Eglinton Avenue East, provided that the maximum floor area is no greater than 2 times the area of the lot. [103-2016] [By-law: 1031-2014]

90.20.40.70 Setbacks

(1) Building Setbacks

In the ON zone, the required minimum **building setback** from a **front lot line**, a **rear lot line** and a **side lot line** is 3.0 metres.

90.20.40.71 Setbacks Exemptions

(1) Setback Exemptions

Regulation 90.20.40.70(1) does not apply to a **transportation use** along Eglinton Avenue West and Eglinton Avenue East, provided that setbacks are between 0 and 15 metres. [103-2016] [By-law: 1031-2014]

90.30 Open Space - Recreation Zone (OR)

90.30.1 General

90.30.1.10 Interpretation

(1) Application of this Section

The regulations in Section 90.30 apply to all lands, uses, **buildings** and **structures** in the OR zone.

90.30.20 Permitted Uses

90.30.20.10 Permitted Use

(1) Use - OR Zone

The following uses are permitted in the OR zone:

Ambulance Depot
Art Gallery
Community Centre
Day Nursery
Entertainment Place of Assembly
Fire Hall
Library
Municipal Shelter
Museum
Park
Place of Assembly
Police Station
Public Utility
Recreation Use
Sports Place of Assembly
Transportation Use [By-law: 545-2019]

90.30.20.20 Permitted Use - with Conditions

(1) Use with Conditions - OR Zone

The following uses are permitted in the OR zone, if they comply with the specific conditions associated with the reference number(s) for each use in Clause 90.30.20.100:

Amusement Arcade (1)
Club (1)
Cogeneration Energy (2)
Eating Establishment (3)
Education Use (1)
Outdoor Patio (5)
Personal Service Shop (3)
Public Works Yard (6)
Renewable Energy (2)
Retail Store (3)
Service Shop (3)
Stable (1)
Take-out Eating Establishment (3) [By-law: 545-2019]

90.30.20.100 Conditions

(1) Amusement Arcade, Club, Education Use, or Stable

In the OR zone, an **amusement arcade**, a **club**, an **education use**, or a **stable** must be combined with a use permitted in regulation 90.30.20.10(1).

(2) Cogeneration Energy Production or Renewable Energy Production

In the OR zone, **cogeneration energy** production or **renewable energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(3) Eating Establishment, Personal Service Shop, Retail Store, Service Shop, or Take-out Eating Establishment

In the OR zone, an **eating establishment**, a **personal service shop**, a **retail store**, a **service shop**, or a **take-out eating establishment**:

- (A) must be combined with a use permitted in regulation 90.30.20.10(1); and
- (B) the **interior floor area** may be no greater than 500 square metres.

(5) Outdoor Patio

In the OR zone, an **outdoor patio**:

- (A) An **outdoor patio** must be combined with one of the following uses on the same **lot** or an abutting **lot** that permits an **outdoor patio**:
 - (i) **amusement arcade**;
 - (ii) **club**;
 - (iii) **eating establishment**;
 - (iv) **entertainment place of assembly**;
 - (v) **place of assembly**;
 - (vi) **recreation use**; and
 - (vii) **take-out eating establishment**;
- (B) may be no closer than 10.0 metres from a **lot** in the Residential Zone category or the Residential Apartment Zone category;
- (C) despite (B) above, if the **outdoor patio** is above the first **storey** of the **building**, it may be no closer than 40.0 metres, measured horizontally, from a **lot** in the Residential Zone category or the Residential Apartment Zone category;
- (D) if a **lawfully existing outdoor patio** is closer to a **lot** than required in (B) or (C) above, that **lawful** distance from a **lot** in the Residential Zone category or Residential Apartment Zone category is the minimum distance for that **lawfully existing outdoor patio** from that **lot**; and
- (E) may be used to provide entertainment such as performances, music and dancing, provided the **outdoor patio** is not located above the first **storey** of the **building** and the entertainment area does not exceed the greater of 10 percent of the **outdoor patio** area or 5.0 square metres. [By-law: 1153-2023]

(6) Public Works Yard

A **public works yard** in the OR zone is subject to the following:

- (A) it must be in association with a **park** or a **recreation use**; and
- (B) **open storage** areas for a **public works yard** must be fenced.

90.30.40 Principal Building Requirements

90.30.40.10 Height

(1) Maximum Height

The permitted maximum height for a **building** or **structure** on a **lot** in the OR zone is:

- (A) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or

- (B) if the **lot** is in an area with no numerical value following the letters "HT" on the Height Overlay Map, 15.0 metres.

90.30.40.70 Setbacks

(1) Front Yard Setbacks

In the OR zone, if a **lot** is:

- (A) beside one **lot** that has a **building** fronting on the same **street** and that **building** is, in whole or in part, 15.0 metres or less from the **building** on the subject **lot**, the required minimum **front yard setback** is the **front yard setback** of that **building** on the abutting **lot**;
- (B) between two abutting **lots**, each with a **building** fronting on the same **street** and those **buildings** are both, in whole or in part, 15.0 metres or less from the **building** on the subject **lot**, the required minimum **front yard setback** is the average of the **front yard setbacks** of those **buildings** on the abutting **lots**; and
- (C) in all other cases, the required minimum **front yard setback** is 6.0 metres.

(2) Rear Yard Setback and Side Yard Setback

In the OR zone, the required minimum **rear yard setback** and **side yard setback** is:

- (A) a distance equal to the height of the **building** to a maximum of 15.0 metres, if a **lot** abuts a **lot** in the Residential Zone category or the Residential Apartment Zone category; and
- (B) 3.0 metres in all other cases.

(3) Building Setbacks for Smaller Buildings or Structures

Despite regulations 90.30.40.70(1) and (2), in the OR zone, the required minimum **building setback** from a **front lot line**, a **rear lot line** and a **side lot line** is 1.5 metres, if:

- (A) the height of the **building** or **structure** is 2.0 metres or less; and
- (B) its **gross floor area** is 50.0 square metres or less.

90.40 Open Space - Golf Course Zone (OG)

90.40.1 General

90.40.1.10 Interpretation

(1) Application of this Section

The regulations in Section 90.40 apply to all lands, uses, **buildings** and **structures** in the OG zone.

90.40.20 Permitted Uses

90.40.20.10 Permitted Use

(1) Use - OG Zone

The following uses are permitted in the OG zone:

Ambulance Depot

Golf Course

Fire Hall

Park

Police Station

Public Utility

Transportation Use

90.40.20.20 Permitted Use - with Conditions

(1) Use with Conditions - OG Zone

The following uses are permitted in the OG zone, if they comply with the specific conditions associated with the reference number(s) for each use in Clause 90.40.20.100:

Amusement Arcade (1)

Club (2)

Cogeneration Energy (3)

Eating Establishment (2)

Education Use (2)

Outdoor Patio (4)

Personal Service Shop (5)

Place of Assembly (2)

Recreation Use (2)

Renewable Energy (3)

Retail Store (5)

Service Shop (5)

Take-out Eating Establishment (5)

90.40.20.100 Conditions

(1) Amusement Arcade

In the OG zone, an **amusement arcade**:

(A) must be combined with a **park** or a golf course; and

(B) may have no more than 12 **amusement devices**.

(2) Club, Eating Establishment, Education Use, Place of Assembly, or Recreation Use

In the OG zone, a **club**, an **eating establishment**, an **education use**, a **place of assembly**, or a **recreation use** must be combined with a **park** or a golf course.

(3) Cogeneration Energy Production or Renewable Energy Production

In the OG zone, **cogeneration energy** production or **renewable energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(4) Outdoor Patio

An **outdoor patio** in the OG zone:

(A) An **outdoor patio** must be combined with one of the following uses on the same **lot** or an abutting **lot** that permits an **outdoor patio**:

- (i) **amusement arcade**;
- (ii) **club**;
- (iii) **place of assembly**;
- (iv) **recreation use**; and
- (v) **take-out eating establishment**.

(B) may be no closer than 10.0 metres from a **lot** in the Residential Zone category or the Residential Apartment Zone category;

(C) despite (B) above, if the **outdoor patio** is above the first **storey** of the **building**, it may be no closer than 40.0 metres, measured horizontally, from a **lot** in the Residential Zone category or the Residential Apartment Zone category;

(D) if a **lawfully existing outdoor patio** is closer to a **lot** than required in (B) or (C) above, that **lawful** distance from a **lot** in the Residential Zone category or Residential Apartment Zone category is the minimum distance for that **lawfully existing outdoor patio** from that **lot**; and

(E) may be used to provide entertainment such as performances, music and dancing, provided the **outdoor patio** is not located above the first **storey** of the **building** and the entertainment area does not exceed the greater of 10 percent of the outdoor patio area or 5.0 square metres. [By-law: 1153-2023]

(5) Personal Service Shop, Retail Store, Service Shop, or Take-out Eating Establishment

In the OG zone, a **personal service shop**, a **retail store**, a **service shop**, or a **take-out eating establishment**:

(A) must be combined with a **park** or a golf course; and

(B) the **interior floor area** may be no greater than 500 square metres. [By-law: 1774-2019]

90.40.40 Principal Building Requirements

90.40.40.10 Height

(1) Maximum Height

The permitted maximum height for a **building** or **structure** on a **lot** in the OG zone is:

- (A) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or
- (B) if the **lot** is in an area with no numerical value following the letters "HT" on the Height Overlay Map, 15.0 metres.

90.40.40.40 Floor Area

(1) Floor Space Index

In the OG zone, the permitted maximum floor space index is 0.15.

90.40.40.70 Setbacks

(1) Building Setbacks

In the OG zone, the required minimum **building setback** from a **front lot line**, **rear lot line** and **side lot line** is the greater of:

- (A) 7.5 metres; or
- (B) a distance equal to the height of the **building** or **structure**.

90.50 Open Space - Marina Zone (OM)

90.50.1 General

90.50.1.10 Interpretation

(1) Application of this Section

The regulations in Section 90.50 apply to all lands, uses, **buildings** and **structures** in the OM zone.

90.50.20 Permitted Uses

90.50.20.10 Permitted Use

(1) Use - OM Zone

The following uses are permitted in the OM zone:

Ambulance Depot

Fire Hall

Marina

Park

Police Station

Public Utility

Transportation Use

90.50.20.20 Permitted Use - with Conditions

(1) Use with Conditions - OM Zone

The following uses are permitted in the OM zone, if they comply with the specific conditions associated with the reference number(s) for each use in Clause 90.50.20.100:

Amusement Arcade (1)

Club (2)

Cogeneration Energy (3)

Eating Establishment (2)

Education Use (2)

Outdoor Patio (4)

Personal Service Shop (5)

Place of Assembly (2)

Recreation Use (2)

Renewable Energy (3)

Retail Store (5)

Service Shop (5)

Take-out Eating Establishment (5)

90.50.20.100 Conditions

(1) Amusement Arcade

In the OM zone, an **amusement arcade**:

(A) must be combined with a **park** or a marina; and

(B) may have no more than 12 **amusement devices**.

(2) Club, Eating Establishment, Education Use, Place of Assembly, or Recreation Use

In the OM zone, a **club**, an **eating establishment**, an **education use**, a **place of assembly**, or a **recreation use** must be combined with a **park** or a marina.

(3) Cogeneration Energy Production or Renewable Energy Production

In the OM zone, **cogeneration energy** production or **renewable energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(4) Outdoor Patio

An **outdoor patio** in the OM zone:

(A) An **outdoor patio** must be combined with one of the following uses on the same **lot** or an abutting **lot** that permits an **outdoor patio**:

- (i) **amusement arcade**;
- (ii) **club**;
- (iii) **place of assembly**;
- (iv) **recreation use**; and
- (v) **take-out eating establishment**.

(B) may be no closer than 10.0 metres from a **lot** in the Residential Zone category or the Residential Apartment Zone category;

(C) despite (B) above, if the **outdoor patio** is above the first **storey** of the **building**, it may be no closer than 40.0 metres, measured horizontally, from a **lot** in the Residential Zone category or the Residential Apartment Zone category;

(D) if a lawfully existing **outdoor patio** is closer to a **lot** than required in (B) or (C) above, that **lawful** distance from a **lot** in the Residential Zone category or Residential Apartment Zone category is the minimum distance for that **lawfully existing outdoor patio** from that **lot**; and

(E) may be used to provide entertainment such as performances, music and dancing, provided the **outdoor patio** is not located above the first **storey** of the **building** and the entertainment area does not exceed the greater of 10 percent of the **outdoor patio** area or 5.0 square metres. [By-law: 1153-2023]

(5) Personal Service Shop, Retail Store, Service Shop, or Take-out Eating Establishment

In the OM zone, a **personal service shop**, a **retail store**, a **service shop**, or a **take-out eating establishment**:

- (A) must be combined with a **park** or a marina; and
- (B) the **interior floor area** may be no greater than 500 square metres.

90.50.40 Principal Building Requirements

90.50.40.10 Height

(1) Maximum Height

The permitted maximum height for a **building** or **structure** on a **lot** in the OM zone is:

- (A) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or
- (B) if the **lot** is in an area with no numerical value following the letters "HT" on the Height Overlay Map, 15.0 metres.

90.50.40.40 Floor Area

(1) Floor Space Index

In the OM zone, the permitted maximum floor space index is 0.15.

90.50.40.70 Setbacks

(1) Building Setbacks

In the OM zone:

- (A) the required minimum **building setback** from a **front lot line**, **rear lot line** and **side lot line** is the greater of:
- (i) 7.5 metres; or
 - (ii) a distance equal to the height of the **building** or **structure**; and
- (B) despite (A) above, no **building setback** is required from a **lot line** that is:
- (i) at the shoreline of Lake Ontario; or
 - (ii) in Lake Ontario.

90.70 Open Space - Cemetery Zone (OC)

90.70.1 General

90.70.1.10 Interpretation

(1) Application of this Section

The regulations in Section 90.70 apply to all lands, uses, **buildings** and **structures** in the OC zone.

90.70.20 Permitted Uses

90.70.20.10 Permitted Use

(1) Use - OC Zone

The following uses are permitted in the OC zone:

Ambulance Depot

Cemetery

Fire Hall

Police Station

Public Utility

Transportation Use

90.70.20.20 Permitted Use - with Conditions

(1) Use with Conditions - OC Zone

The following uses are permitted in the OC zone, if they comply with the specific conditions associated with the reference number(s) for each use in Clause 90.70.20.100:

Cogeneration Energy (1)

Funeral Visitation Centre (2)

Office (3)

Renewable Energy (1)

Retail Store (3)

90.70.20.100 Conditions

(1) Cogeneration Energy Production or Renewable Energy Production

In the OC zone, **cogeneration energy** production or **renewable energy** production must be in combination with another permitted use on the **lot**, and comply with all Municipal, Provincial and Federal by-laws, statutes and regulations.

(2) Funeral Visitation Centre

In the OC zone, a **funeral visitation centre** must be combined with a **cemetery**.

(3) Office or Retail Store

In the OC zone, an office or a **retail store** must be in association with a **cemetery** or a **funeral visitation centre**.

90.70.40 Principal Building Requirements

90.70.40.10 Height

(1) Maximum Height

The permitted maximum height for a **building** or **structure** on a **lot** in the OC zone is:

- (A) the numerical value, in metres, following the letters "HT" on the Height Overlay Map; or
- (B) if the lot is in an area with no numerical value following the letters "HT" on the Height Overlay Map, 15.0 metres.

90.70.40.40 Floor Area

(1) Floor Space Index

In the OC zone, the permitted maximum floor space index is 0.15.

90.70.40.70 Setbacks

(1) Building Setbacks

In the OC zone, the required minimum **building setback** from a **front lot line**, **rear lot line** and **side lot line** is the greater of:

- (A) 7.5 metres; or
- (B) a distance equal to the height of the **building or structure**; and
- (C) despite (A) and (B) above, for a monument with a height of 3.0 metres or less the required minimum **front yard setback**, **rear yard setback** and **side yard setback** is 0.9 metres.

90.70.40.80 Separation

(1) Separation of Columbarium or Mausoleum from a Lot in Specified Zone Categories

A **columbarium** or a **mausoleum** may be no closer to a **lot** in the Residential Zone category or Residential Apartment Zone category than:

- (A) 7.5 metres, if its:
 - (i) height is 2.0 metres or less; and
 - (ii) volume is 15.0 cubic metres or less; and
- (B) 30.0 metres, in all other cases.

(2) Separation of Columbarium or Mausoleum from a Lot in Other Specified Zone Categories

A **columbarium** or a **mausoleum** may be no closer to a **lot** that is not in the Residential Zone category or Residential Apartment Zone category than the greater of:

- (A) 7.5 metres; or
- (B) a distance equal to its height.

90.70.40.81 Separation Exemptions

(1) Permitted Separation from Other Zones for Lawfully Existing Columbarium or Mausoleum

In the OC zone, if the **lawful** separation distance between a **lawfully existing columbarium** or **mausoleum** and a **lot** is less than the required minimum separation distance, that **lawful** separation distance is the minimum separation distance between that **lawfully existing columbarium** or **mausoleum** and that **lot**.

(2) Additions to Lawfully Existing Columbarium or Mausoleum - Separation from Other Zones

Any addition or extension to a **lawfully existing columbarium** or **mausoleum** referred to in regulation 90.70.40.81(1) must comply with the required minimum separation distance from a **lot** or be authorized by a Section 45 Planning Act minor variance.